

representations that residents of the Facility would be provided with a standard of care consistent with all statutory and regulatory requirements.

The complaint also alleges that “[i]ntegrated into the scheme set forth by the DEFENDANTS through their Governing Body is the objective to limit costs so as to maximize profit for DEFENDANTS’ individual directors, officers, and managers at the expense of the health and safety of residents like CHIEM SAEPHAN. Through budgetary constraints, the DEFENDANTS systematically fail to have the resources or the staff on hand to manage the care of residents like CHIEM SAEPHAN.” (*Id.* at ¶ 10.) The complaint further alleges that the FACILITY and MANAGEMENT DEFENDANTS acted “in concert with one another in furtherance of their common design and agreement to accomplish a particular result, namely maximizing profits for DEFENDANTS’ individual directors, officers, and managers from the operation of the FACILITY by underfunding and understaffing the FACILITY. Moreover, the DEFENDANTS aided and abetted each other in accomplishing the acts and omissions alleged herein.” (*Id.* at ¶ 12.) Defendants are also alleged to have “multiple common officers, directors, and managing agents.” (*Id.* at ¶ 19.)

On 8/30/2024, Plaintiff filed a motion for class certification. (ROA #57.) The motion was withdrawn on 3/25/2025, after the parties reached a settlement at mediation. (ROA #142.)

On 4/3/2025, Plaintiff filed a motion for preliminary approval of the class action settlement. (ROA #147.) In support, Plaintiff submitted the Settlement Agreement (ROA #147, Exh. 1) and the Addendum to Settlement Agreement (ROA #169, Exh. 2). On 6/26/2025, at the 2nd hearing on the matter, the Court granted the motion. (ROA #184.) On 7/11/2025, the Court signed and entered the order granting preliminary approval. (ROA #189.)

In the meantime, on 6/26/2026, the Court entered a stipulated order to consolidate the instant action with *Miller v. ASMB, LLC*, OSCS Case No. 30-2024-01431680-CU-NP-CJC for purposes of settlement. (ROA #173.) However, this *Miller* complaint was filed on 12/7/2025 by Plaintiff Patricia Miller, by and through her successor in interest, Natalie Gianne. (See ROA #2 in Case No. 2024-01431680.) It is *not* a class action complaint; rather, it alleges 2 causes of action for (1) Elder Abuse (Pursuant to the Elder Adult and Dependent Adult Civil Protection Act—Welfare & Institutions Code §§ 15600, et seq.) and (2) Negligence. Although the caption of the stipulated order lists a different *Miller* case that is a class action—i.e., *Miller v. ASMB, LLC*, OCSC Case No. 30-2024-01439749—the text of the order consolidates the instant action with the wrong *Miller* (individual) case.

On 11/5/2025, Plaintiffs filed the instant (1) Motion for Final Approval of Class Action Settlement and (2) Motion for Award of Attorneys’ Fees, Costs, and Service Awards (collectively, “Motion”).

After the first hearing on the Motion on 12/4/2025, the Court continued the Motion so that Class Counsel could address various issues identified by the Court. (ROA #204; see also ROA #206 [addressing administrator’s late-filed supplemental declaration].) The Court also vacated the 6/26/2025

consolidation order and ordered Class Counsel to submit a new proposed stipulated consolidation order that lists the correct case number for the *Miller* class action. (*Id.*) Counsel did so in the instant action, and the Court entered the new consolidation order in the instant action on 1/14/2026. (ROA #221.)

To confirm, in the *Miller* class action, the complaint was filed by Plaintiffs (1) Patricia Miller, by and through her successor in interest, Natalie Gianne, and (2) Terry Joy against Defendants (a) ASMB, LLC and (b) Aspen Skilled Healthcare, Inc. (ROA #2 in Case No. 30-2024-01439749.) Miller and Joy were residents at Berkley East Healthcare Center; ASMB, LLC was the licensee doing business as Berkley East (also “Facility”); and Aspen is the owner, operator, parent company, and/or management company of this Facility. (*Id.* at ¶¶ 1-4.) The *Miller* complaint largely mimics the Saephan complaint.

At the second, third, fourth, and fifth hearings on the Motion on 2/5/2026, 3/5/2026, 4/9/2026, and 5/21/2026, respectively, the Court continued the Motion so that Class Counsel could address various issues identified by the Court. (ROA #234, 251, 278, 303.)

In support of the Motion and in response to the Court’s previous orders, the parties have submitted the following key documents, among others:

1. Settlement Agreement (ROA #147, Exh. 1), which includes a Staffing Contract at Exhibit C thereto;
2. Addendum to Settlement Agreement (ROA #169, Exh. 2);
3. Addendum to Exhibit C Staffing Contract (ROA #214, Exh. 3);
4. Second Addendum to Settlement Agreement (ROA #214, Exh. 4);
5. Third Addendum to [] Settlement Agreement (ROA #248);
6. Plaintiffs’ Doe Amendment to their complaints (ROA #257);
7. Defendants’ Notice of Appearance (ROA #274);
8. Lists of Class Members who have submitted Requests for Exclusion (ROA #268, Exh. B; ROA #290, Exh. 1; ROA #308, Exhs. 3, 4 at Opt Outs; see also ROA #266 at ¶ 8, #284 at ¶ 4, ROA #308 at ¶ 4, Exhs. 1-2);
9. List and copies of objection forms received from Class Members (ROA #288, “Updated” Exh. D); and
10. Lists of Class Members who will receive each type of claim payment (ROA #308, Exh. 4 at Current, Former, and Successors).

Items #1-5 are collectively referred to as the “Settlement” or “Settlement Agreement.” All capitalized terms are as defined in the Settlement Agreement.

In sum, the Motion seeks approval of the Settlement, under which the Settling Defendants agree to pay a Settlement Amount of \$12,000,000 to cover (1) all Cash Payments to Eligible Settlement Class Members; (2) Settlement Administration Costs, (3) Attorneys’ Fees and Expense Payment; (4) Service Payments to the Named Plaintiffs; (5) Monitoring Costs; and (6) costs to comply with the Staffing Contract (“Staffing Compliance Assurance Amounts”). However, in the event that the Staffing Compliance Assurance Amounts exceed the total Settlement Amount, the Covered Facilities shall

still be required to fully comply with all provisions of the Staffing Contract and any Staffing Compliance Assurance Amounts which exceed the Settlement Amount shall be paid for by the Covered Facilities out of pocket.

The Class is comprised of 52,635 Class Members, defined as “any person who resided in, currently resides in, or who is a successor-in-interest, legal heir, and/or personal representative to a person who resided in any of the Covered Facilities during the Settlement Class Period.” Class Members include:

- Resident Class Members, defined as “any person who resided in any of the Covered Facilities at any time during the applicable Settlement Class Period for the Covered Facility in which the Settlement Class member resided”; and
- Successor Class Members, defined as “(a) all persons who are named as a beneficiary in the will or living trust of any Resident Class Member who is deceased as of the Claim Bar Date; or (b) if there was no will or living trust, then:
 1. The surviving spouse or domestic partner of the Resident Class Member. 1.
 2. If none of the above, the child of the Resident Class Member, or child of a predeceased child of the Resident Class Member.
 3. If none of the above, the surviving parent of the Resident Class Member.
 4. If none of the above, the sibling of a Resident Class Member, or a child of a pre-deceased sibling of the Resident Class Member.
 5. If none of the above, the grandparent of a Resident Class Member, or a child or grandchild of the pre-deceased grandparent of the Resident Class Member.”

The Settlement provides the following Cash Payments to Class Members:

- Each living Eligible Settlement Class Member who is a Current Resident will receive \$250.00 in the form of an automatic credit to their facility trust account, or in the form of a check if the Eligible Class Member who is a Current Resident does not have a facility trust account. An Eligible Settlement Class Member who is a Current Resident need not to submit a Claim Form to receive payment.
- Each living Eligible Settlement Class Member who is not a Current Resident will receive \$225.00. A valid Claim Form is required to receive payment.
- Each Successor Class Member will receive \$125.00. Successors of a deceased Eligible Settlement Class Member shall only be entitled to collectively receive a total of \$125.00 paid pro rata. A valid Claim Form is required to receive payment.

The Settlement Class Period is defined as “(1) as to the Defendant Facilities named in the Action, four years prior to the filing of the Complaints in the Actions up to and including the Preliminary Approval Date and (2) as to the remaining Covered Facilities, four years prior to the Preliminary Approval date up to and including the Preliminary Approval Date.” The Preliminary Approval Date is defined as the date that the Preliminary Approval Order was signed by the Court, which was 7/11/2025.

Between 8/19/2025, the settlement administrator, CPT Group, Inc., sent class notices via U.S. Mail to 52,635 Class Members. (ROA #195 at ¶ 4, #230 at ¶ 6.)

The administrator’s 3/17/2026 declaration attests that 3,115 notices were remailed between 8/28/2025 and 12/16/2025. (ROA #266 at ¶ 6.) Of these remailed notices, 3,041 were remailed because they were returned by the post office and an updated address was obtained; and 74 were remailed (or emailed) at the request of the Class Member. (*Id.*)

Plaintiffs’ counsel and the administrator attest that the administrator received a total of 335 opt-out requests, including 2 requests from individuals who were “unidentifiable” by the administrator—meaning they could not be associated with a Class Member—as set forth in Exhibit B of ROA #268 (see ROA #284 at ¶ 4 and ROA #288 at ¶ 4, both citing ROA #266 and #268 at Exh. B) and as further clarified in Exhibit 3 of ROA #308 (see also ROA #308 at ¶¶ 4-5, Exhs. 1-2). The individuals listed in Exhibit B of ROA #268 and Exhibit 3 of ROA #308 are not bound by the Court’s Final Approval Order and Judgment.

Plaintiffs’ counsel and the administrator also attest that a total of 54 objections were received by the administrator. (ROA #284 at ¶ 5 and ROA #288 at ¶ 5.) These objections were submitted to the Court for review as part of the updated Exhibit D attached to ROA #288. The Court now adopts its previous tentative ruling on these 54 objections in its 5/21/2026 minute order (ROA #303) and rules as follows:

- Twenty-five (25) respondents submitted an objection form but did not provide any information as to the basis for their objection. (Sub-Exhs. D-2, D-3, D-8, D-9, D-13, D-14, D-16, D-17, D-22, D-23, D-28, D-29, D-31, D-32, D-34, D-35, D-41, D-43, D-45, D-46, D-47, D-48, D-49, D-50, D-54.) The Court **OVERRULES** these objections as containing insufficient information.
- Five (5) respondents submitted statements praising the facilities and/or the care received. (Sub-Exhs. D-1, D-4, D-5, D-12, D-27.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents objected that the settlement amount is too low. (Sub-Exhs. D-7, D-15, D-25, D-26, D-38.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents submitted statements that corroborated Plaintiffs’ allegations of staffing shortages. (Sub-Exhs. D-6, D-18, D-37, D-42, D-44.) The Court considered these objections but **OVERRULES** them.

- Thirteen (13) respondents submitted objections raising other issues with the facilities not explicitly related to staffing shortages (e.g., poor treatment by staff). (Sub-Exhs. D-11, D-19, D-20, D-21, D-24, D-30, D-33, D-36, D-39, D-40, D-51, D-52, D-53.) The Court considered these objections but **OVERRULES** them.
- One final “objection” was submitted by Ruth Nemetz, who submitted an objection form, but all she wrote in the space provided for expressing her objection was: “I respectfully decline settlement.” (Sub-Exh. D-10.) Substantively, this is not an objection, despite it being submitted on an objection form. Accordingly, the Court **OVERRULES** this objection.

The Court concludes that the Settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. Therefore, the Court certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys’ fee award totaling \$1,632,497.50 is fair, adequate, and reasonable for a class and settlement of this type and size, including considering the action’s contingent nature and the results achieved. This amount represents the total lodestar amount for (1) time incurred through 1/13/2026 (\$1,614,972.50) and (2) anticipated time to be incurred prospectively as attested to by counsel (\$71,500.00) (see ROA #214, ¶¶ 34-36, Exhs. 6-7), with the following deductions:

- \$19,485.00 for hours billed by Cathleen L. Hiltbrand, as Class Counsel has failed to explain this biller’s position and experience;
- \$28,870.00 for time spent fixing counsel’s mistake in filing the action in the name of a deceased plaintiff and responding to Defendants’ demurrer on that ground, including filing a new complaint;
- \$600.00 for time spent fixing counsel’s mistake in initially listing the wrong case number for the *Miller* action to be consolidated with this action in the proposed order;
- \$600.00 for time spent drafting an addendum to the settlement agreement to eliminate the ambiguity as to whether Defendants’ financial obligations would be capped at \$12 million even if compliance with the Staffing Contract would require more than that amount;
- \$4,340.00 for time spent by S. Milewski from 7/25/2025 through 1/11/2026 for the task described as “[a]nalyze, collect and categorize discovery documents pursuant to request for production of documents,” given that the parties reached a settlement on 3/25/2025 and the Court entered the order granting preliminary approval of the settlement on 7/11/2025, so the parties should no longer have been engaged in discovery at that point; and
- \$80.00 for time spent on an alleged defense ex parte application on or around 8/4/2025, which does not appear to be related to this action given that the Court already entered the order granting preliminary approval of the settlement on 7/11/2025.

The Court also concludes that actual reasonable litigation costs are \$77,131.91, as litigation costs should not include overhead or nonrecoverable items such as postage, photocopies, and electronic legal research. Therefore, the Court deducts the following items from the requested \$81,359.63 in costs:

- From Exhibit 3 of ROA #194:
 - 3/1/2024 – Legal Research on Westlaw - \$107.05
 - 3/1/2024 - Photocopies - \$20.85
 - 4/1/2024 – Postage - \$2.64
 - 5/1/2024 – Legal Research on Westlaw - \$257.75
 - 9/1/2024 – Legal Research - \$199.64
 - 10/1/2024 – Legal Research - \$52.32
 - 11/1/2024 – Postage - \$342.90
 - 11/1/2024 – Photocopies - \$2,732.70
 - 3/1/2025 – Legal Research - \$55.92
 - 6/1/2025 – Legal Research on Westlaw - \$130.45
 - 7/5/2025 – Legal Research - \$77.84
- From Exhibit 4 of ROA #194:
 - 10/1/2024 – Postage - \$1.94
 - 4/2/2025 – Legal Research - \$80.07
- From Exhibit 6 of ROA #214:
 - 1/2/2026 – Postage – December 2025 - \$7.40
- From Exhibit 7 of ROA #214:
 - 1/4/2026 – Photocopies – December 2025 - \$158.25

The Court further concludes that a Service Payment of \$5,000 per Named Plaintiff is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about each Named Plaintiff's contribution to the case and the modest number of hours spent by the Named Plaintiffs.

The Court also notes that although the administrator attested that it will charge a total of \$119,000 in costs associated with the administration of the Settlement (ROA #215 at ¶ 10), the Court finds that the Settlement provides for Settlement Administration Costs of only up to \$100,000 to be paid from the Settlement Amount.

Accordingly, the Court approves the following specific awards and disbursements from the Settlement Amount:

- Attorneys' fees totaling \$1,632,497.50 awarded to Class Counsel, Garcia & Coman;
- Litigation costs totaling \$77,131.91 awarded to Class Counsel, Garcia & Coman;
- Settlement administration costs of \$100,000.00 awarded to CPT Group, Inc.; and
- Service Payments totaling \$15,000.00, with \$5,000.00 awarded to Plaintiff Chiem Saephan, by and through his successor in interest James Saephan; \$5,000.00 awarded to Plaintiff Patricia Miller, by and through her successor in interest, Natalie Gianne; and \$5,000.00

		awarded to Plaintiff Terry Joy, by and through his Attorney in Fact Vickie Joy; and • Cash Payments totaling \$1,684,400 to be made to Eligible Class Members in accordance with the Settlement Agreement, based upon the final claim numbers as attested to by the administrator in ROA #308 at ¶ 5 and Exhibit 4: ○ \$673,250 to 2,693 current residents; ○ \$995,400 to 4,424 for living former residents; and ○ \$15,750 to 126 successors to decedents. Within five (5) court days, Class Counsel must submit a revised Proposed Order Granting Motion for Attorneys’ Fees, Costs, and Service Awards that incorporates the specific awards and disbursements in the amounts set forth in this minute order. Final Accounting is set for December 2, 2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement. The final report should also include an update on the implementation of the Staffing Contract. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this ruling to Defendants and file proof of service within five (5) court days of this ruling. Plaintiffs are also ordered to give Defendants notice of entry of the Final Approval Order and Judgment and the Order Granting Motion for Attorneys’ Fees, Costs, and Service Awards within five (5) court days of entry of those orders.
110	Penaloza vs. OC Dough, Inc. 2020-01122070	1. Motion to Vacate re Arbitration Award 2. ADR Review Hearing The motion of plaintiff Efrain Penaloza for an order vacating the award issued by the arbitrator on November 9, 2025 and the arbitrator’s order granting defendant’s motion for summary judgment is DENIED. Plaintiff Efrain Penaloza moves under Code Civ. Proc. §§ 1286.2 and 1286.6 for an order vacating the arbitration award issued by the arbitrator on November 9, 2025 as well the arbitrator’s order granting defendant’s motion for summary judgment. Defendant OC Dough, Inc., opposes the motion. Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. Code Civ. Proc. § 1985. The petition must name as respondents all parties to the arbitration award and may name as respondents any other persons bound by the arbitration award. Code Civ. Proc. § 1985. A petition to confirm, correct, or vacate an arbitration award must: (a) set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an